

25TRCV03660 25TRCV03660

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV03660 Hearing Date: September 24, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Thursday – September 24, 2026

Department M Calendar No

PROCEEDINGS

Janet Kama v. Armine Pogosyan, et
al.

25TRCV03660

1. Armine Pogosyan's Motion for Leave to File
Cross-Complaint

TENTATIVE RULING

Armine

Pogosyan's Motion for Leave to File Cross-Complaint is granted.

Background

Plaintiff

filed the Complaint on October 24, 2025. Plaintiff alleges the following facts.

Defendant threw a clipboard at Plaintiff injuring her wrist. Plaintiff set
forth a sole cause of action for Negligence.

Motion for Leave to File Cross-Complaint

Pursuant

to Code of Civ. Proc. § 428.10(b)(1): “A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following: Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him. . .” The instant cross-complaint is compulsory since it “arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint.” Code Civ. Proc., § 426.10.

Code

Civ. Proc., § 428.50 states:

“(a)

A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b)

Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A

party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.”

Pursuant

to Code of Civ. Proc. § 426.50: “A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such

cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action."

"A

policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court.

A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result.

Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith." Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98–99. Mere delay in filing the proposed

Cross-Complaint is not sufficient to deny a motion absent substantial injustice and prejudice. Foot's Transfer & Storage Co. v. Superior Court (1980) 114 Cal.App.3d 897, 903–904. Actual bad faith must be demonstrated.

Defendant

moves for leave to file a Cross-Complaint on the grounds that the proposed causes of action arise out of the same transaction, occurrence, or series of transactions or occurrences as Plaintiff's Complaint, and, thus, the granting of leave to file the cross-complaint is mandatory pursuant to CCP § 426.10. Defendant contends that the causes of action are related to the Complaint which seeks damages for personal injuries. Defendant seeks leave to file a Cross-Complaint against Plaintiff as well as proposed Cross-Complainants Radnet Managed Imaging Services, Inc. and DOES 1 to 30.

The

interest of justice supports granting leave to file the Cross-Complaint to allow all disputes between all parties to be adjudicated in one action. There is no showing that moving Defendant acted in bad faith in making this motion. There is no showing that granting the motion will cause Plaintiff substantial prejudice and injustice.

Therefore,

as there is no showing that Defendant acted in bad faith in making this motion, Defendant's motion for leave to file a Cross-Complaint is granted.

Defendant

is directed to file and serve the proposed Cross-Complaint as to all parties who have already appeared in this action within five days of this date.

As to

Radnet Managed Imaging Services, Inc. an OSC re: dismissal for failure to serve Cross-Complaint is set for _____.

Defendant

is ordered to give notice of this ruling.